

The Lords Commander

Restoring Functional Sovereignty to the Canadian Senate

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ABSTRACT

Canada's Senate suffers from a legitimacy deficit rooted not in democratic theory but in functional vacancy. Appointed without obligation, accountable to no constituency, and shorn of any meaningful stake in national life, senators exercise power as a relic of patronage rather than as an expression of sovereign purpose. This paper proposes a structural reformation of the upper chamber drawing on the deep constitutional logic of the feudal Lords, the Canadian militia tradition, and the continuing vitality of the Crown as the organizing principle of the Canadian state. Under this framework, Senate seats would be held by Lords Commander: individuals exercising command authority over formations of the Canadian Armed Forces Reserve, serving as the living bond between the Crown, the land, and the people. The proposal is unapologetically monarchist, constitutionally conservative, and functionally serious.

I. The Problem of the Empty Chamber

The Canadian Senate was designed as a chamber of sober second thought, a body of experienced citizens insulated from the passions of electoral democracy and positioned to review, revise, and occasionally restrain the elected Commons. In its conception it was not without logic. Upper chambers throughout the Westminster tradition served as counterweights, repositories of institutional memory, and protectors of minority interests against majoritarian excess.

What the framers of Confederation could not have anticipated was the degree to which the appointment mechanism would hollow out that logic entirely. A chamber whose members owe their seats to the pleasure of the Prime Minister of the day, and whose tenure is effectively permanent until age 75, cannot credibly claim to represent any constituency, hold any functional stake in national outcomes, or exercise authority grounded in anything other than the political debt of the appointing government.

Reform proposals have proliferated for decades: an elected Senate, a Triple-E Senate, abolition, regional appointment panels. Each proposal floundering on the same constitutional reef: any model that gives the Senate democratic legitimacy comparable to the Commons creates institutional deadlock; any model that preserves its appointed character perpetuates the patronage problem. The debate has been framed as a binary between democratic accountability and appointed deference. This paper argues the binary is false, and that a third path exists, one grounded not in electoral theory but in functional sovereignty.

II. The Feudal Model and Its Constitutional Logic

To understand what a functional upper chamber looks like, one must return to the origins of the institution itself. The House of Lords did not emerge from democratic theory. It emerged from military necessity.

When William the Conqueror distributed the conquered lands of England to his most powerful Norman followers after 1066, he did so through a system of tenure: land in exchange for military service. The great barons and bishops who held fiefs directly from the Crown were not merely landowners. They were warlords, administrators, and judges. They sat in the Curia Regis, the royal council, not as a privilege of birth but as a consequence of obligation. Their voice carried weight because behind it stood men, arms, and territory.

The feudal bargain was elegantly simple: the Crown granted land and the protection of royal authority; the tenant-in-chief owed military service, counsel, and aid. Representation in the royal council was not a right to be claimed but a duty to be discharged. The great magnate who refused the summons was not exercising democratic rights; he was defaulting on a constitutional obligation.

Over subsequent centuries, as the feudal military obligation was commuted to cash payments and ultimately dissolved, the Lords retained their form while losing their function. By the eighteenth century, a duke owed his seat to the accident of birth and the memory of an ancestor's military service, not to any present capability or obligation. The 1911 Parliament Act, which stripped the Lords of their absolute veto, was not an act of democratic vandalism; it was the logical consequence of an institution that had become purely decorative.

The lesson is not that the Lords model was wrong. It is that it worked precisely when and because membership entailed genuine function. The restoration of functional legitimacy to an upper chamber requires the restoration of that logic, adapted to modern conditions.

III. The Crown as Constitutional Anchor

Any serious constitutional reform in Canada must reckon with the Crown, not as an embarrassing colonial legacy to be managed, but as the living organizing principle of the Canadian state.

The Crown in right of Canada is not merely a symbol. It is the legal personality through which the state acts: it holds land, enters contracts, commands armed forces, and exercises prerogative powers that no statute has fully codified. The Governor General, as the Crown's representative, is formally the Commander-in-Chief of the Canadian Armed Forces. Every commission held by a Canadian officer is a commission of the Crown. Every regiment traces its lineage through the Crown to the

founding military institutions of the country. Every soldier, sailor, or airman of the Dominion swears oath not to the flag but to the Crown.

This is not a historical curiosity, it is a constitutional resource. The Crown provides precisely the non-partisan, non-electoral anchor of legitimacy that Senate reform has been unable to locate anywhere else. A Senate whose members hold authority derived from the Crown, through a functional military command relationship, can claim a form of legitimacy that is neither electoral nor purely appointive: it is sovereign.

Canada's monarchist tradition is not simply inherited sentiment. It is the constitutional grammar through which the country's deepest commitments, continuity, restraint, the subordination of faction to the common good, are expressed. A reformed Senate organized around the Crown's military command structure would not be an anachronism. It would be a return to first principles.

IV. The Canadian Militia Tradition

Canada was not built by a standing army, it was built by a militia. From the defence of the St. Lawrence in 1759 through the War of 1812, the Northwest Rebellion, the Boer War, and both World Wars, the citizen-soldier has been the human foundation of Canadian military power. The reserve force is not a supplement to the regular army; it is, in the deepest sense, the original form of Canadian military organization.

Today, the Canadian Armed Forces Reserve comprises tens of thousands of Canadians who hold civilian careers and military commissions simultaneously. They are teachers, tradespeople, engineers, lawyers, and farmers who train regularly, deploy when called, and maintain the territorial defence capacity of their communities. They are geographically distributed across the country in a way that the regular force, concentrated in a handful of major bases, is not.

Reserve brigade formations roughly correspond to recognizable regions of the country. The 5 Canadian Division Support Group covers Atlantic Canada. The 34 Canadian Brigade Group covers Quebec. The 31 and 32 Canadian Brigade Groups cover Ontario. The 38 and 39 Canadian Brigade Groups cover the prairies and the west. This geographic distribution maps naturally onto the regional representation function that the Senate was originally designed to serve.

The reserve commander is not a bureaucrat. He or she is responsible for the readiness, training, and welfare of thousands of citizen-soldiers. That responsibility is real, measurable, and consequential. It is precisely the kind of functional stake that the current Senate lacks entirely.

V. The Framework: Lords Commander of Canada

This paper proposes that the Canadian Senate be reconstituted as a chamber of Lords Commander: individuals holding command authority over formations of the Canadian Armed Forces Reserve, appointed by the Governor General on the advice of a non-partisan military council, serving for the duration of their command tenure.

Structural Principles

Each Lord Commander would hold a Senate seat coterminous with their command appointment. Senate representation would follow formation boundaries, providing genuine geographic distribution that reflects the territorial reality of Canada rather than the administrative convenience of provincial lines alone.

The Governor General, as Commander-in-Chief, would sit at the apex of the structure, with the Lords Commander deriving their Senate authority from the same Crown commission that grounds their military authority. The regular force would remain under direct Crown command, apolitical and outside the legislative structure.

The Lords Commander would occupy the middle position: civilian-military, legislative-sovereign, the living bridge between the Crown and the land.

The Commons would retain its democratic primacy and the power of supply. The Lords Commander chamber would serve its original function: revision, delay, and the protection of long-term national interests against short-term electoral pressure, but with a functional legitimacy grounded in real obligation rather than partisan appointment.

Selection and Tenure

Command appointments within the reserve force follow a merit-based promotion and selection process administered through the Canadian Armed Forces chain of command. A Lords Commander appointment would flow automatically from a qualifying command position, subject to Governor General commission. This insulates the selection process from direct Prime Ministerial patronage while preserving the Crown's formal appointment authority.

Tenure would be fixed at ten years, covering both the command appointment and the Senate seat simultaneously. This is a deliberate departure from the current CAF posting cycle, which rotates formation commanders on roughly two-to-three year intervals. That rotation model, whatever its merits for operational flexibility, is corrosive to institutional knowledge. A commander reaches genuine effectiveness precisely when the system moves him on. The formation loses its accumulated understanding of terrain, personnel, and relationships, and the cycle begins again. This is a known pathology of the Canadian military personnel system, and it should not be imported into the upper chamber.

Ten years allows a Lord Commander to become genuinely expert in the people, geography, and needs of their formation and region. It creates the conditions for the sober second thought the Senate was always supposed to provide but rarely has. Former Lords Commander would hold no residual Senate entitlement on the expiry

of their term, eliminating the sinecure problem entirely and ensuring the chamber remains constituted of those actively carrying the obligation, not those who once did.

The Title

The designation Lord Commander is deliberate. It recovers the feudal resonance of the Lords tradition, signals the functional military grounding of the office, and distinguishes the reformed chamber clearly from the current Senate. It carries weight precisely because it demands something. A Lord Commander of the 31 Canadian Brigade Group is not a political appointment. She is the commanding officer of a formation with history, territory, and obligation. That is what the title should communicate, and it does.

VI. Objections and Responses

The Military in Politics Objection

The most predictable objection is that placing military commanders in a legislative chamber violates the principle of civilian control of the armed forces. This objection misunderstands both the proposal and the principle.

Civilian control exists to prevent the military from acting autonomously against the direction of elected government. It does not require that persons with military backgrounds or current command responsibilities be excluded from public life. The Lords Commander would exercise legislative authority as citizens of the Crown, not as instruments of the chain of command. Their Senate votes would be cast as Lords, not as officers. The distinction is functional and legally coherent. It mirrors, in structural terms, the position of the reserve officer who holds both a civilian career and a military commission without those roles being in conflict.

The Democratic Deficit Objection

Critics will argue that an unelected chamber lacks democratic legitimacy regardless of its functional grounding. The response is that the Senate was never intended to be a democratic institution in the electoral sense, and that the attempt to impose electoral logic on it has produced three decades of reform deadlock without result. The Lords Commander model does not claim electoral legitimacy. It claims something older and, for the purposes of an upper chamber, arguably more appropriate: functional sovereignty, grounded in obligation to the Crown and the land.

The Constitutional Amendment Objection

Fundamental Senate reform requires constitutional amendment under the 7/50 formula or, for some changes, unanimity. This is a real constraint. The framework proposed here is offered as a constitutional vision, not an immediate legislative agenda. Its value lies in providing a coherent direction for reform efforts that currently lack one, and in demonstrating that the binary of elected versus appointed is not the only available constitutional logic.

VII. Conclusion

Canada possesses all the constitutional resources necessary to build a Senate that means something. The Crown provides the anchor of non-partisan sovereignty. The reserve force provides the geographic distribution and functional obligation. The Lords tradition provides the historical precedent. What has been lacking is the willingness to draw these threads together into a coherent framework.

The Lords Commander model is that framework. It does not ask senators to be something they currently are not. It asks them to be something they were always supposed to be: representatives with a real stake in the country, holding authority derived from genuine obligation rather than political debt, and accountable not to a party but to the Crown and the land they serve.

Honi soit qui mal y pense.